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विश्वविद्यालय अनुदान आयोग

अधिसूचना

नई दिल्ली, 1 जनवरी, 2021

विश्वविद्यालय अनुदान आयोग (समवत विश्वविद्यालय श्रेष्ठ संस्थान) (संशोधन) विनियम 2021

मि. 1-4/2016 (आईओई).—विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 (1956 का 3) की धारा 26 की उप-धारा (1) के खंड (च) और (छ) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए विश्वविद्यालय अनुदान आयोग, विश्वविद्यालय अनुदान आयोग (समवत विश्वविद्यालय श्रेष्ठ संस्थान) विनियम, 2017 में संशोधन करने के लिए एतद्वारा निम्नलिखित नियम बनाता है, अर्थात्: -

- संक्षिप्त नाम एवं प्रारम्भ.**—(1) इन विनियमों को विश्वविद्यालय अनुदान आयोग (समवत विश्वविद्यालय श्रेष्ठ संस्थान) (संशोधन) विनियम, 2021 कहा जाएगा।
(2) ये विनियम शासकीय राजपत्र में उनके प्रकाशन की तिथि से लागू होंगे।
- विश्वविद्यालय अनुदान आयोग (समवत विश्वविद्यालय श्रेष्ठ संस्थान) विनियम 2017 (इसके पश्चात इन्हें उक्तविनियम कहा गया है) के विनियम 2.0 (परिभाषाएं) में -
(क) खंड 2.10 के लिए निम्नलिखित प्रतिस्थापित किया जाएगा अर्थात्: -
"2.10 मंत्रालय का अभिप्राय "शिक्षा मंत्रालय"।

10. उक्त विनियमों के विनियम 19.0 (दूरस्थ शिक्षा) के लिए निम्नलिखित विनियम प्रतिस्थापित किया जाएगा; अर्थात्: -

19.0 "दूरस्थ और ऑनलाइन शिक्षा" :- समवत विश्वविद्यालय श्रेष्ठ संस्थान आयोग द्वारा निर्धारित न्यूनतम मानकों के अनुसार, बिना किसी अनुमोदन के दूरस्थ पद्धति और ऑनलाइन पद्धति के अधीन पाठ्यक्रम संचालित/ प्रदान कर सकते हैं। यह प्रावधान सरकार के स्वामित्व वाले और नियंत्रित सम विश्वविद्यालयों के लिए भी लागू होगा, जिन्हें विश्वविद्यालय अनुदान आयोग (सरकारी शैक्षणिक संस्थानों की श्रेष्ठ संस्थानों के रूप में घोषणा) दिशानिर्देश, 2017 के अधीन श्रेष्ठ संस्थान घोषित किया गया है।"

11. उक्त विनियमों के विनियम 21.1 के उप-विनियम 21.1 में, "मानव संसाधन विकास मंत्रालय" शब्दों के लिए निम्नलिखित शब्द "मंत्रालय" प्रतिस्थापित किया जाएगा।

प्रो. रजनीश जैन, सचिव

[विज्ञापन-III/4/असा./435/2020]

टिप्पणी: मुख्य अधिनियम भारत के राजपत्र (असाधारण) भाग-III खंड IV में मि.सं. 1-4/2016(सी.पी.पी-1/डीयू) दिनांक 29 अगस्त, 2017 में प्रकाशित किए गए थे।

UNIVERSITY GRANTS COMMISSION NOTIFICATION

New Delhi, the 1st January, 2021

UGC (institutions of Eminence Deemed to be Universities) (Amendments) Regulations 2021

F. No.- 1-4/2016(1oE).—In exercise of powers conferred by clauses (f) and (g) of sub-section (1) of section 26 of the University Grants Commission Act, 1956 (3 of 1956), the University Grants Commission hereby makes the following regulations to amend the UGC (Institutions of Eminence Deemed to be Universities) Regulations, 2017, namely:-

1. **Short title and Commencement.**—(1) These regulations may be called the UGC (Institutions of Eminence Deemed to be Universities) (Amendment) Regulations, 2021.
(2) They shall come into force on the date of their publication in the Official Gazette.
2. In the UGC (Institutions of Eminence Deemed to be Universities) Regulations, 2017 (hereinafter referred to as the said regulations); in regulation 2.0.,-
 - (a) for sub-regulation 2.10, the following sub-regulation shall be substituted, namely:-
‘2.10 “Ministry” means the Ministry of Education’;
 - (b) for sub-regulation 2.12, the following sub-regulation shall be substituted, namely:-
‘2.12 “Off Campus Centre” means a centre of the Institution of Eminence Deemed to be University, approved by the Government, and situated beyond its Campus within India.’;
 - (c) for sub-regulation 2.13, the following sub-regulation shall be substituted, namely:-
‘2.13 “Off-shore Campus” means a centre of the Institution of Eminence Deemed to be University, approved by the Government, and situated beyond its Campus outside India.’;
 - (d) in sub-regulation 2.15, for the words, brackets and letters “Medical Council of India (MCI)” the following words “National Medical Commission” shall be substituted.
3. In the said regulations, in regulation 4.0, in sub-regulation 4.2, for clause 4.2.7, the following sub-regulation shall be substituted, namely:-
“4.2.7 The faculty student ratio should be not less than 1:20 at the time of notification issued declaring an institution as an Institution of Eminence and should increase over time so as not to be less than 1:10 after five years of this date. The faculty for the purpose of calculating the teacher-student ratio shall include the regular faculty, adjunct faculty, overseas faculty, visiting faculty, contractual faculty, industry faculty and tenure track faculty, or faculty as otherwise permitted by the Statutory Council(s) concerned:-

Provided, that 60 per cent of the faculty shall be appointed on permanent/regular basis and part-time faculty shall not be counted for this purpose. Moreover, 60 per cent of the permanent/ regular faculty shouldn't breach 1:10 faculty student ratio at any point of time.

4. In the said regulations, in sub-regulation 5.2, for the words "MHRD" the following word "Ministry" shall be substituted.
5. In the said regulations, in regulation 6.0, in sub-regulation 6.1, for clause (iii) the following clause shall be substituted, namely:-
 "(iii) The sponsoring organisation for greenfield institutions should have members whose total networth is at least rupees five thousand crores collectively. For existing institutions, the total networth of the sponsoring organization should be at least rupees three thousand crores. For this purpose, the average of the net-worth of the members or organization, as the case may be, for the last three financial years shall be taken into consideration."
6. In the said regulations, in regulation 8.0:-
 - (a) in sub-regulation 8.1, for the words "Ministry of Human Resource Development" at both the places where they occur, the following word "Ministry" shall be substituted;
 - (b) in sub-regulation 8.2, in clause 8.2.1, for the words "Ministry of Human Resource Development", the following word "Ministry" shall be substituted;
 - (c) in sub-regulation 8.4,-
 - (i) in clause (a), for the words "Ministry of Human Resource Development", the following word "Ministry" shall be substituted;
 - (ii) in clause (d), for the words "Ministry of Human Resource Development", the following word "Ministry" shall be substituted;
 - (iii) for clause (e), the following clause shall be substituted, namely:-
 "(e) the Ministry will issue a Letter of Intent (LoI), or otherwise reject the application, within two weeks of receipt of the recommendations under Clause (d). In case the institute surrenders its Letter of Intent (LoI) at any time, the application of the institute shall be treated as withdrawn and the application/processing fee shall stand forfeited."
 - (iv) in clause (g), for the words "Ministry of Human Resource Development", the following word "Ministry" shall be substituted;
 - (v) in clause (h), for the words "Ministry of Human Resource Development", wherever they occur, the following word "Ministry" shall be substituted;
 - (vi) in clause (i), for the words "Ministry of Human Resource Development", the following word "Ministry" shall be substituted;
7. In the said regulations, in regulation 11.0, in sub-regulation 11.2,-
 - (a) for clause 11.2.4, the following clause shall be substituted, namely:-
 "11.2.4 The Institution of Eminence Deemed to be University shall have the freedom to offer online courses as part of its programmes. If all the courses of any programme are offered online, it should also be mentioned in the respective certificate/ degree."
 - (b) after clause 11.6.2, the following sub-regulations shall be inserted, namely:-
"11.7 Establishment of Off-campus centre(s): Institutions of Eminence Deemed to be Universities shall be permitted to start new off-campus centre(s) (maximum of 3 in 5 years and not more than 1 in one academic year), by following the procedure mentioned hereunder:-
 11.7.1- Institutions of Eminence Deemed to be Universities shall submit their application to the Ministry by way of an Affidavit in the prescribed proforma along with the Detailed Project Report (DPR) containing its 10 year Strategic Vision Plan and a five year rolling implementation plan viz. academic plan, faculty recruitment plan, student admission plan, research plan, infrastructure development plan, financial plan, administrative plan, governance plan with clear annual milestones and action plan on how the proposed off-campus is to be set up with identifiable outcomes for approval to start/establish an Off-Campus Centre. The Ministry shall forward the application to the Commission for its advice within ten days of the receipt of the application.
 11.7.2- The Institutions of Eminence Deemed to be Universities applying for off-campus centre(s) shall have to meet the following stipulations in the proposed off-campus centre(s) within a reasonable time period not exceeding five years:-

(i) teacher student ratio shall not be more than 1:20 OR shall be as per the requirement of the concerned Statutory Council(s). The teacher student ratio shall be 1:10 at the end of the five years. The faculty for this purpose shall include the regular faculty, adjunct faculty, overseas faculty, visiting faculty, contractual faculty, industry faculty and tenure track faculty, or faculty as otherwise permitted by the Statutory Council(s) concerned:-

Provided, however, that at least sixty per cent. of the faculty shall be appointed on permanent/regular basis;

(ii) a minimum of five hundred students on its rolls under regular class room mode with one third PG/Research students;

(iii) five PG programmes;

(iv) research Programmes;

(v) built up area of not less than thirty square metres per student which shall include academic (academic buildings, library, lecture hall, laboratories, etc.), administrative (hostels, faculty residences, health care), common and recreational facilities.

Provided that at the time of starting the programme(s), the academic and physical infrastructure at the proposed off-campus centre(s) shall be in accordance with the norms/standards prescribed by the UGC/concerned Statutory Council(s). Such programme shall have the approval of the relevant Statutory Council(s), wherever required. The Institutions of Eminence Deemed to be Universities shall ensure that the norms and standards of the Off-Campus Centre shall be the same as that maintained in the main campus for similar courses, and the Off-Campus Centre shall also follow similar admission criteria, curriculum, examination system and evaluation system. All the information about the off-campus centre shall be disclosed on the website of the Institution of Eminence Deemed to be University:

Provided further that the Institutions of Eminence Deemed to be Universities shall be permitted to start an Off-Campus Centre(s) in an interim campus subject to the condition that the permanent campus shall be ready within a reasonable time period not exceeding five years.

Provided also that the Institutions of Eminence Deemed to be Universities shall ensure that by the end of ten years of the starting of the Off-Campus Centre, the Off-Campus Centre is evolved as a multi-disciplinary research and teaching campus having at least 3 faculties with a minimum of 300 teachers and 3000 students.

11.7.3- The Commission shall place the application before the Empowered Experts Committee for examination and its recommendations on the application. There shall be no requirement of physical inspection. This process shall be completed within thirty days of the receipt of the application from the Ministry.

11.7.4- The Chairman of the Commission, on behalf of the Commission, shall forward the recommendations of the Empowered Experts Committee along with the advice of the Commission to the Ministry within ten days of the receipt of the Empowered Experts Committee recommendations.

11.7.5- The Ministry shall, after taking into the consideration the recommendations of the Empowered Experts Committee and advice of the Commission, and ordinarily within a further period of fifteen days from the date of receipt of such advice, either issue a notification for starting of off-campus centre(s) or, as the case may be, a Letter of Intent (LoI) for setting up of new off-campus centre or reject the proposal stating the reasons thereto. The decision of the Ministry shall be final and binding.

11.7.6- The functioning of the off-campus centre(s) shall be reviewed by the Empowered Experts Committee independently and/or along with the Institution of Eminence Deemed to be Universities in accordance with the provisions available under regulation 13.0. After review of the off-campus centre, if the Empowered Experts Committee is not satisfied with the performance of the off-campus centre, it may recommend discontinuation of the off-campus centre to the Central Government. In such cases the interest of the students enrolled at the off-campus centre shall be protected and the Institution of Eminence Deemed to be University shall be asked to seek affiliation of the Off-campus centre to the State University having territorial jurisdiction.

11.8 Establishment of an Off-shore campus

11.8.1- Institutions of Eminence Deemed to be Universities shall be allowed to start new off-shore campuses with the prior approval of the Ministry after receiving No Objection Certificate from Ministry of External Affairs and Ministry of Home Affairs. The Institutions of Eminence Deemed to be Universities shall ensure that the norms and standards of the Off-shore campus shall be the same as that maintained in the main campus for similar courses, and the Off-shore campus shall also follow similar admission criteria, curriculum, examination system and evaluation system. All the information about Off-shore campus shall be disclosed on the website of the Institution of Eminence Deemed to be University.

11.8.2- The functioning of the off-shore campus(s) shall be reviewed by the Empowered Experts Committee independently and/or along with the IoE Deemed to be Universities in accordance with the provisions available under regulation 13.0. After review of the off-shore campus, if the Empowered Experts Committee is not satisfied with the performance of the off-shore campus, it may recommend discontinuation of the off-shore campus to the Central Government. In such cases the interest of the students enrolled at the off-shore campus shall be adequately protected by the Institution of Eminence Deemed to be University.

11.9 Entering in to the agreement/arrangement

- (a) The Institution of Eminence Deemed to be University may enter into an agreement or arrangement for the establishment, maintenance or operation of an institution, if -
 - (I) Such agreement or arrangement is permitted under any Act of Parliament or the rules or regulations made thereunder; and
 - (II) It has made an application following the procedure specified in regulation 11.7, except the procedure in sub-regulation 11.7.2, and the campus to be established under such agreement or arrangement shall be-
 - (A) treated as an Off-Campus Centre of the Institution of Eminence Deemed to be University as long as such agreement or arrangement remains valid under such law; and
 - (B) subject to similar standard of audit and disclosure as a 'not-for-profit' entity as that of the Institution of Eminence Deemed to be University.
 - (b) The Institution of Eminence Deemed to be University may enter into an agreement or arrangement for practical training of students of a skill oriented vocational course if such course is approved by the University Grants Commission or any other body established under any Act of Parliament.”.
8. In the said regulations, in regulation 13.0, in sub-regulation 13.1, for the words “Ministry of Human Resource Development”, the following word “Ministry” shall be substituted.
 9. In the said regulations, for regulation 16.0, the following regulation shall be substituted, namely:-
“16.0 The Institution of Eminence Deemed to be University shall be a unitary Institution Deemed to be University, which shall include its Off-Campus Centre(s) and Off-shore campus(s), if any, and shall not affiliate any other institution.”.
 10. In the said regulations, for regulation 19.0, the following regulation shall be substituted, namely:-
“19.0 Distance and online education:- The Institutions of Eminence Deemed to be Universities may offer courses under distance mode and online mode, without any approvals, in accordance with the minimum standards laid down by the Commission. This provision shall also apply to Government owned and controlled Deemed to be Universities which have been declared Institutions of Eminence under UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines, 2017.”.
 11. In the said regulations, in regulation 21.0, in sub-regulation 21.1, for the words “Ministry of Human Resource Development” the following word “Ministry” shall be substituted.

Prof. RAJNISH JAIN, Secy.

[ADVT.-III/4/Exty./435/2020]

Note: The principal regulations were published in the Gazette of India, Extraordinary under Part III, Section 4 vide No. F. 1-4/2016 (CPP-I)/DU dated 29th August, 2017.